

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION**

KATHRYN COPELAND,	§	
Plaintiff,	§	Civil Action No.
v.	§	
WEINSTEIN MANAGEMENT CO., INC.;	§	
WMCi DALLAS X, LLC;	§	
LILE BENAICHA, individually and in her	§	
capacity as General Counsel;	§	RELATED CASE
PHILADELPHIA INDEMNITY	§	Copeland v. Tarrant County,
INSURANCE COMPANY; and	§	No. 4:25-cv-890-O
AMY BROCHSTEIN, individually and	§	(N.D. Tex.)
in her capacity as claims adjuster,	§	
Defendants.	§	JURY TRIAL DEMANDED

**PLAINTIFF'S ORIGINAL VERIFIED COMPLAINT
AND APPLICATION FOR TEMPORARY
RESTRAINING ORDER AND
PRELIMINARY INJUNCTION**

(Filed Under Penalty of Perjury Pursuant to 28 U.S.C. § 1746)



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Dated: May 12, 2026

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ALLISON WEINSTEIN, individually and in
her capacity as Co-President;
LILE BENAICHA, individually and in her
capacity as General Counsel;
PHILADELPHIA INDEMNITY INSURANCE
COMPANY; and
AMYE BROCHSTEIN, Esq., individually and
in her capacity as Senior Claims Specialist,
Defendants.

Civil Action No. _____

**Plaintiff's Original Complaint and Application for Temporary
Restraining Order and Preliminary Injunction**

Use of Generative Artificial Intelligence and Notice of ADA Accommodation

Pursuant to N.D. Tex. Local Civil Rule 7.2(f), Plaintiff discloses that a generative artificial intelligence tool (Anthropic Claude) assisted in drafting portions of this filing. Plaintiff is a person with documented disabilities — including traumatic brain injury, mild cognitive impairment, hypermobile Ehlers-Danlos

Syndrome, Mast Cell Activation Syndrome, and Postural Orthostatic Tachycardia Syndrome — that substantially limit her capacity to draft lengthy legal documents without assistive technology. Plaintiff's use of generative artificial intelligence is a reasonable accommodation under Title II of the Americans with Disabilities Act, 42 U.S.C. § 12132, and an exercise of her right of meaningful access to courts. *See Tennessee v. Lane*, 541 U.S. 509, 522–531 (2004). Plaintiff has personally reviewed every factual assertion, legal citation, quotation, and argument contained herein and accepts personal responsibility for the contents. Plaintiff is filing contemporaneously a Motion for Appointment of Counsel pursuant to 28 U.S.C. § 1915(e)(1).

I. INTRODUCTION

1. This is a federal disability-housing civil-rights action. Plaintiff Kathryn Copeland — a person with multiple documented disabilities, who receives Social Security Disability Insurance and has been homeless for more than 197 days as of the filing of this Complaint — requested reasonable accommodations after environmental testing declared her apartment unfit for human occupancy due to mold contamination. Defendants had actual written notice of her rights under the Fair Housing Act and the Americans with Disabilities Act; they possessed their own retained contractor's report confirming contamination with *Chaetomium* toxic mold and inadequate remediation; and they nonetheless denied safe temporary housing, detained her disability-related property and medical equipment, and escalated

litigation conduct across multiple state-court forums after each act of protected accommodation activity.

2. Three federal statutory provisions frame this action. First, 42 U.S.C. § 3604(f)(3)(B) requires reasonable accommodation in rules, policies, practices, or services when necessary to afford a handicapped person equal opportunity to use and enjoy a dwelling. Second, 42 U.S.C. § 3617 prohibits coercing, intimidating, threatening, or interfering with any person's exercise or enjoyment of rights granted or protected by the Fair Housing Act. Third, 42 U.S.C. § 12203(b) prohibits coercing, intimidating, threatening, or interfering with any individual in the exercise or enjoyment of rights protected by the Americans with Disabilities Act.

3. Plaintiff does not ask this Court to sit as an appellate tribunal over any state court. She does not ask the Court to stay, vacate, reverse, or restrain any state-court proceeding. She asks this Court to adjudicate Defendants' own continuing conduct — refusal to accommodate, interference, coercion after statutory notice, and ongoing deprivation of medically necessary housing and property — and to grant prospective, party-directed relief.

4. Every Defendant named in this Complaint had actual written notice of federal civil-rights exposure before the conduct described herein. They escalated anyway. Three of the named individual Defendants — Defendant Allison Weinstein (J.D., Washington University School of Law, 1987), Defendant Lile Benaicha (J.D.,

Washington and Lee University School of Law, 2007), and Defendant Amye Brochstein, Esq. (J.D., a licensed attorney serving as Senior Claims Specialist at Philadelphia Insurance Companies) — are each licensed attorneys who received written federal civil-rights notice and continued the alleged conduct. Defendant Allison Weinstein personally signed Weinstein's internal ADA Site Compliance program. Under *Kolstad v. American Dental Ass'n*, 527 U.S. 526 (1999), facts of that character plausibly support malice or reckless indifference, and punitive damages are warranted on the developed record.

5. What follows below is a fourteen-month chronology of housing interference, evidence concealment, and multi-forum retaliation against a disabled tenant who asked her landlord to accommodate a documented mold emergency. The chronology is not the case; the federal civil-rights interference is the case. Each chronological event is pleaded to establish protected activity, actual notice, interfering conduct, causal connection, and harm.

6. On May 10, 2026, Plaintiff served a formal pre-suit federal civil-rights demand on Defendants Allison Weinstein and Lile Benaicha and on counsel of record, with a 9:00 a.m. CDT, May 11, 2026 deadline to respond. (Ex. 28) The deadline passed without any response. On the same day the deadline expired, Defendants filed in state court a 144-page Combined Motion for Traditional and No-Evidence Summary Judgment attacking Plaintiff's Fair Housing Act and Americans

with Disabilities Act counterclaims. (Ex. 29) At 7:58 p.m. CDT on May 11, 2026, Plaintiff filed a Notice of Nonsuit Without Prejudice in the 141st District Court (Tyler eFile Envelope No. 114755572) pursuant to Texas Rule of Civil Procedure 162, dismissing her affirmative claims and expressly preserving them for this federal forum. (Ex. 30) At 10:33 a.m. CDT on May 12, 2026 — approximately fourteen and one-half hours after the nonsuit was filed and after the Tyler eFile system had served Defendants' counsel with notice of the nonsuit — Defendants refiled the same Combined Motion for Summary Judgment against claims that no longer existed as a matter of law (Tyler eFile Envelope No. 114772665). (Ex. 33) This Complaint follows that documented final opportunity to cure.

II. JURISDICTION AND VENUE

7. This Court has federal question jurisdiction under 28 U.S.C. § 1331, 42 U.S.C. § 3613(a) (Fair Housing Act), and 42 U.S.C. § 12188 (Americans with Disabilities Act). The Court has supplemental jurisdiction over related state-law claims under 28 U.S.C. § 1367.

8. Venue is proper in the Northern District of Texas, Fort Worth Division, under 28 U.S.C. § 1391(b) because a substantial part of the events giving rise to this Complaint occurred in Tarrant County, Texas, and the property at issue — Apartment 2145 at The Bowery at Southside — is located in Tarrant County.

III. PARTIES

9. Plaintiff Kathryn Copeland is an individual residing in Tarrant County, Texas. She is a person with disabilities within the meaning of 42 U.S.C. § 3602(h) and 42 U.S.C. § 12102, including hypermobile Ehlers-Danlos Syndrome ("hEDS"), Mast Cell Activation Syndrome ("MCAS"), histamine overload, traumatic brain injury, Postural Orthostatic Tachycardia Syndrome ("POTS"), Long COVID, Celiac disease, major depressive disorder, post-traumatic stress disorder, attention deficit hyperactivity disorder, mild cognitive impairment, and thyroid conditions. She has been under the continuous care of Isabel S. Huang, M.D., Associate Professor in the Department of Physical Medicine and Rehabilitation at UT Southwestern Medical Center, since October 8, 2024. On April 10, 2026, the Social Security Administration issued a fully favorable determination that Plaintiff has been totally disabled since June 8, 2023. (Ex. 1) Plaintiff receives Social Security Disability Insurance. She appears pro se.

10. Defendant Weinstein Management Co., Inc. is a Texas-registered corporation, headquartered in Henrico County, Virginia, operating as a residential property management company that owned and managed the apartment complex where Plaintiff resided. Weinstein Management Co. operates in multiple states. Its public corporate website (www.weinsteinproperties.com) maintains an Equal Housing Opportunity commitment, links to a published Accessibility Policy, and

proclaims among Weinstein's core corporate Values "EMBRACING A CULTURE OF INCLUSION AND OPENNESS." (Ex. 7A Defendants' public commitments to inclusion, openness, equal-housing compliance, and accessibility are juxtaposed against the conduct alleged below.

11. Defendant WMCI Dallas X, LLC is a Texas limited liability company and affiliate of Weinstein Management Co., Inc. that filed the retaliatory eviction proceeding against Plaintiff in Justice Court, Precinct 5, Tarrant County.

12. Defendant Allison Weinstein is Co-President and Chief Executive Officer of Weinstein Management Co., Inc., and the senior corporate officer responsible for Weinstein's policies and decisions concerning fair-housing and disability accommodation. She holds a Juris Doctor from Washington University School of Law (1987). She is a signatory to Weinstein's internal ADA Site Compliance program. As Co-President, she had actual or constructive notice of Plaintiff's federal civil-rights claims through Defendant Benaicha, the company's General Counsel, on a continuing basis from June 30, 2025 onward. She received direct written notice from Plaintiff by name on May 10, 2026 in Plaintiff's pre-suit federal civil-rights demand letter. (Ex. 28) She is sued individually and in her capacity as Co-President.

13. Defendant Lile Benaicha is General Counsel of Weinstein Management Co., Inc. She holds a Juris Doctor from Washington and Lee University School of Law (2007) and previously served as corporate counsel at Troutman Pepper and

SUGARFINA USA before joining Weinstein in 2020. She received actual written notice of Plaintiff's federal civil-rights claims on June 30, 2025 — the first day of Plaintiff's formal accommodation request — and received subsequent written statutory notice on November 9, 2025 and January 8, 2026. All post-June 30 corporate acts are chargeable to her as a corporate officer with actual notice. She is sued individually and in her capacity as General Counsel.

14. Defendant Philadelphia Indemnity Insurance Company is Weinstein's insurer. Through claims adjuster Amye Brochstein, it made and then repudiated a written commitment to fund temporary housing "until remediation is completed," participated in the housing coordination that led to Plaintiff's homelessness, and was copied on multiple federal civil-rights notices.

15. Defendant Amye Brochstein, Esq., is Senior Claims Specialist at Philadelphia Insurance Companies. She is a licensed attorney (J.D.). Her professional email signature on every relevant communication identifies her as "Amye R. Brochstein, Esq." Senior Claims Specialist of Philadelphia Insurance Companies. She received actual written notice of Plaintiff's federal civil-rights claims on August 15, 2025 and November 9, 2025, among other dates. She personally executed the August 15, 2025 written commitment to fund temporary housing "until the remediation is completed," and personally repudiated that

commitment on November 3, 2025. She is sued individually and in her capacity as Senior Claims Specialist.

IV. FACTUAL ALLEGATIONS

16. Pursuant to Federal Rule of Civil Procedure 10(c), Plaintiff incorporates by reference each of the exhibits identified in the Exhibit Index filed contemporaneously with this Complaint, and the contents of each such exhibit are made part of this Complaint for all purposes.

A. Plaintiff's Disabilities and Housing Rights

17. Plaintiff has documented disabilities that substantially limit major life activities including physical mobility, cognitive processing, immune function, and the ability to tolerate environmental exposures including mold.

18. Plaintiff's treating physician at UT Southwestern Medical Center, Dr. Isabel S. Huang, M.D., has documented in repeated written statements that Plaintiff's hEDS, MCAS, histamine overload, and POTS cause severe systemic inflammation, post-exertional malaise, orthostatic intolerance, neurological and sensory dysfunction, severe gastrointestinal impairment, and immune-system flare-ups, and that Plaintiff's environmental sensitivities specifically include severe reactions to mold. (Exs. 2–4) Additional treating providers have documented traumatic brain injury affecting cognitive processing and oral communication; major depressive

disorder (recurrent); PTSD; ADHD (combined type); and mild cognitive impairment. (Exs. 5–6)

19. Plaintiff resided at 405 Crawford Street, Unit 2145, Fort Worth, Texas 76104 ("Unit 2145"), a unit managed by Weinstein Management Co., Inc., under a residential lease.

B. The Mold Crisis and Accommodation Denial (June–August 2025)

20. On June 18, 2025, BioTex Environmental, Inc. environmental testing declared Unit 2145 "unfit for human occupancy" due to mold contamination. (Ex. 13)

21. On June 27, 2025, Plaintiff submitted a formal ADA/FHA accommodation request for written communications, comparable temporary housing during remediation, and licensed mold remediation in accordance with applicable code. (Ex. 8)

22. On June 30, 2025 at 2:08 p.m. CDT, Plaintiff submitted a formal written accommodation request to Weinstein, copying General Counsel Lile Benaicha. The request attached the BioTex report, State Farm denial, and TDLR § 1958.101 citations. At 5:42 p.m. Weinstein representative Kodi Walker denied: "we are not able to accommodate requests for relocation or hotel reimbursement." (Ex. 9) At 8:50 p.m., Plaintiff filed TDLR Complaint No. 0000018107 and a HUD complaint, and sent Benaicha the complaint numbers with a July 1 deadline. Benaicha had

actual written notice of federal civil-rights exposure by close of business June 30, 2025.

23. On July 5, 2025 — five days after Benaicha received federal civil-rights notice — senior leasing manager Jessika Calkins called Plaintiff. The call was recorded in its entirety. (Ex. 10) Calkins made the following statements, among others: (a) "We're not required to relocate you" — repeated four or more times; (b) "Our obligation is to follow our lease agreement" — when Plaintiff asked about ADA accommodation; (c) "our upper management, our maintenance team beyond our local maintenance team, we are very well versed in these things" — confirming the refusal was a corporate-level decision; (d) "We've had, you know, similar cases before — we've been able to treat and remediate and it be completely fine" — a corporate admission of a pre-existing pattern of handling similar tenant accommodation disputes; (e) "You are now violating your lease" — a coercive threat of lease enforcement made directly in response to Plaintiff's exercise of federally protected accommodation rights, before any actual lease violation; (f) "we are very well versed in all of our, you know, in ADA, the property codes, the compliance — we always have done things ethically and to the T" — a contemporaneous corporate-level admission of ADA knowledge made while denying the very accommodation request at issue; and (g) when Plaintiff asked directly about ADA accommodation, Calkins refused to engage: "Katie, I'm not going to continue. Would you like to go

relocate to a hotel this weekend so we can begin the work on Monday?" These admissions and threats, made by a senior leasing manager describing corporate-level decisions, were recorded contemporaneously and establish actual corporate knowledge of ADA obligations on July 5, 2025.

24. On August 14, 2025, Philadelphia Indemnity Insurance Company, through adjuster Amye Brochstein, committed in writing that temporary housing would continue "until the remediation is completed." (Ex. 11) Plaintiff relied on this commitment.

25. On August 18, 2025, Plaintiff sent a second formal federal DTPA/FHA demand letter to Weinstein and ServPro. (Ex. 12)

26. On August 26, 2025 — eight days after Plaintiff's August 18 federal demand letter — Weinstein issued a lease nonrenewal notice. No legitimate lease violation was cited.

C. The September Sequence: Assault, Hospitalization, and Forced Return (September 2025)

27. On September 8, 2025, Dallas Mold Consultants — hired by Weinstein — submitted a written report and Mold Assessment Consultant (MAC) Protocol documenting that the apartment had been contaminated with Chaetomium toxic mold, that remediation had not been properly conducted ("No equipment on site and no negative pressure on the containment"), and that "all contents in the apartment

should be considered contaminated." (Ex. 14) The MAC Protocol confirms the remediation area exceeds 25 contiguous square feet, triggering the Mold Assessment and Remediation Rules under 16 TAC §§ 78.110–78.150. The report attributed flooring damage to a building-system failure ("HVAC condensation drain line"). Weinstein concealed this report from Plaintiff until late October 2025 and concealed it from three subsequent state-court hearings at which Defendants obtained injunctive relief. Concealment of a material adverse contractor report from courts granting equitable relief implicates the courts' inherent powers and applicable disciplinary rules, including the duty of candor under Texas Disciplinary Rule of Professional Conduct 3.03, independently of the federal civil-rights interference theory pleaded herein.

28. On September 10, 2025, Plaintiff was treated at Texas Health Fort Worth Emergency Department for an assault. Diagnoses: scalp hematoma (initial encounter), cervical sprain (initial encounter), and strain of thoracic region (initial encounter). CT imaging of head, cervical spine, and thoracic spine was ordered. Police Report No. 250067642 was filed and an Emergency Protective Order was requested. Plaintiff was discharged at approximately 1:53 a.m. on September 11. (Ex. 17) At the time of these events, Weinstein had possessed the September 8 Dallas Mold contamination report for two days.

29. On September 11, 2025 — the same day as Plaintiff's hospital discharge — Weinstein counsel Glynis Zavarelli called Plaintiff and refused to fund transport for Plaintiff's belongings. This refusal, directed at a person freshly discharged from the emergency room recovering from assault injuries, triggered a cascade of harm: without transport assistance, Plaintiff could not resolve her situation at Bowie House hotel; she was arrested for criminal trespass at Bowie House despite a negotiated arrangement; and she was forced back into Unit 2145 — the unit Weinstein's own contractor had documented as contaminated with Chaetomium three days earlier.

30. Plaintiff returned to the contaminated unit while recovering from scalp hematoma and cervical and thoracic injuries, on hydrocodone and muscle relaxants.

31. On September 16, 2025, Plaintiff emailed Michelle Sortor, Glynis Zavarelli, Lile Benaicha, Pamela Quinn, and Amye Brochstein, documenting the full sequence and requesting Hotel Drover at a negotiated rate of \$549 per night. Weinstein's response: Holiday Inn Fossil Creek or Holiday Inn Fort Worth Downtown, with a 6:30 p.m. deadline and a statement that failure to respond would be treated as Plaintiff having "secured alternate lodging." All five principals had actual written notice on September 16 that Plaintiff was recovering from a documented assault and living in a contaminated unit Weinstein's own contractor had just inspected.

32. Weinstein eventually provided accommodations at the Worthington Hotel, where Plaintiff resided through October 27, 2025.

D. The Retaliatory Lawsuit, Property Removal, and Evidence Concealment (September–October 2025)

33. On September 19, 2025, eleven days after receiving the Dallas Mold report, Weinstein filed suit against Plaintiff in the 141st District Court, Tarrant County (Cause No. 141-370402-25). The petition alleged Plaintiff "caused flooring damage" — a direct contradiction of the September 8 report, which attributed that same flooring damage to the building's HVAC condensation drain line. Counsel who filed the petition had the contradicting report in hand.

34. On September 19, 2025, in a 31-minute phone call on the same day the petition was filed, Zavarelli stated: "it's my understanding they've complied with all the deadlines that are required to be able to start on the 22nd" — simultaneously filing a petition alleging Plaintiff was obstructing remediation.

35. On a date between Plaintiff's relocation to substitute hotel housing and her late-October 2025 discovery, and in any event before any court order authorized property removal, Weinstein's agents removed all of Plaintiff's personal property — including essential medical equipment and supplies — from Unit 2145 without Plaintiff's knowledge, consent, or any court order. Dr. Huang's contemporaneous December 21, 2025 letter documents Plaintiff's report that the property was handed

to unlicensed mold remediation personnel and has not been returned or cleaned. (Ex.

3) The TRO was not entered until October 2, 2025.

36. On October 2, 2025, Weinstein obtained an ex parte TRO (\$1,000 bond). The September 8 Dallas Mold report was not disclosed. Plaintiff was unable to appear due to disability-related circumstances.

37. On October 3, 2025, Zavarelli personally inspected Plaintiff's belongings. Her email documented that she observed medical equipment (pulse oximeter, portable blood pressure cuff, bandages, humidifier), children's photographs, and children's artwork, and that she ordered photographs taken. She noted: "no lab testing was performed as to the personal property items" — while simultaneously representing to the court that the property was contaminated. (Ex. 15)

38. On October 5, 2025, Zavarelli authorized removal of all remaining contents to a storage unit, without Plaintiff's consent. Her email: "I did not hear from you. Staff have been released. All boxes and items that were in your apartment have been moved to storage unit S18, 4th floor of building 2." (Ex. 15) Sortor later confirmed in writing that the move occurred despite Plaintiff having refused. No court order authorized removal at this date — the October 2 TRO addressed access, not removal.

39. On October 16, 2025, a default Temporary Injunction was entered. Plaintiff, disabled and unable to appear, was not present. The September 8 report

was again not disclosed. The bond protecting Plaintiff's interests was \$1,000. Trial was set for May 11, 2026.

40. On October 27, 2025, Philadelphia Indemnity, through Brochstein, terminated Plaintiff's hotel housing — despite the August 14, 2025 written commitment that housing would continue until remediation was complete. (Ex. 11) In the thirty days preceding termination, Defendants had paid approximately \$20,487 per month for Plaintiff's housing and dog boarding, comprising \$17,937.19 to the Worthington Hotel and approximately \$2,550 in dog-boarding fees. (Ex. 16) Plaintiff has been homeless continuously since October 27, 2025 — more than 197 days as of the filing of this Complaint.

41. Weinstein filed a Motion for Protective Order to prevent production of the September 8 Dallas Mold report. Plaintiff obtained a copy directly from MAC Assessor Dayna Boor.

E. The Pending December 29, 2025 Emergency Motion and Defendants' Procedural Response

42. On December 29, 2025, Plaintiff filed in the 141st District Court an Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment. (Ex. 18) The motion was supported by Dr. Huang's contemporaneous December 21, 2025 letter, (Ex. 3) which documents Plaintiff's report that her medical equipment was removed and handed to unlicensed mold remediation personnel; that

the contaminated belongings had not been returned or cleaned; that Plaintiff requires immediate access to safe housing free from environmental triggers; and that contaminated belongings must be replaced (not merely cleaned) to ensure Plaintiff's safety. The motion sought \$18,000 per month in interim housing relief (twelve percent below the approximately \$20,487 per month Defendants had previously paid for substitute housing) and a one-time \$20,000 medical-equipment replacement payment for an itemized list of medically necessary equipment including adjustable beds, medical-grade air purifiers, heat/infrared therapy devices, pain-management equipment, and hypoallergenic bedding.

43. Dr. Huang's December 21, 2025 letter further documents that a December 4, 2025 in-person court hearing triggered a severe medical flare in Plaintiff, including "physical strain and environmental exposure" that "significantly worsened her symptoms of pain, weakness, and fatigue." Dr. Huang concluded: "Without immediate accommodations, Ms. Copeland's health could continue to deteriorate, preventing her from recovering and participating effectively in her case." (Ex. 3)

44. Defendants did not respond to the December 29, 2025 Emergency Motion on the merits. They responded with procedural objections on January 12–13, 2026 — the First Formal Corporate Ratification. As of the filing of this federal Complaint, no order has issued on the December 29, 2025 motion. Plaintiff has been without ADA-appropriate housing and without her medical equipment for more than 197

days continuously, in the face of a documented, unaddressed emergency motion in state court.

45. On May 11, 2026, Defendants filed a 144-page Combined Motion for Traditional and No-Evidence Summary Judgment in the 141st District Court. (Ex. 29) That motion asserts — over multiple pages — that no "regulated" mold ever existed in Unit 2145 and attacks BioTex's findings as methodologically flawed. That position is irreconcilable with the September 8, 2025 Dallas Mold Consultants report Defendants themselves commissioned. (Ex. 14) Defendants are simultaneously litigating two contradictory positions: that no regulated mold existed (in their motion for summary judgment) and that Plaintiff's apartment was contaminated such that her property could be detained (in their state-court representations and Zavarelli's October 3 emails). (Ex. 15) Continued prosecution of a position contradicted by Defendants' own retained contractor, in a court where Defendants concealed that contractor's report from three prior hearings, is itself further evidence of § 3617 and § 12203(b) interference and raises additional concerns under the candor-to-tribunal duty imposed by Texas Disciplinary Rule of Professional Conduct 3.03.

F. Multi-Forum Interference Campaign (November 2025–May 2026)

46. Beginning in November 2025, Defendants and their counsel pursued a coordinated, multi-forum interference campaign against Plaintiff's federally protected rights. The campaign operated through multiple distinct state-court forums

simultaneously: the 141st District Court (Tarrant County); Justice Court Precinct 3 (Tarrant County); Justice Court Precinct 5 (Tarrant County); the 236th District Court (Tarrant County); and the 233rd District Court (Tarrant County, in connection with the Local Administrative Judge's review of a vexatious-litigant permission question). The factual allegations in this Section are pleaded not as a request for federal review of any state-court ruling, but as evidence of Defendants' party conduct.

(1) Justice Court, Precinct 3 — Plaintiff's Retaliation Action (JP03-25-SC00028212)

47. On August 21, 2025, Plaintiff (through attorney John A. Douglas) filed a Small Claims Petition for retaliation under Texas Property Code § 92.331.

48. On August 26, 2025, Defendants filed an Answer and Request for Injunctive Relief inside Plaintiff's own retaliation case.

49. On October 21, 2025, Defendants filed a Motion to Conduct Limited Discovery in the small-claims case.

50. On December 24, 2025, Plaintiff filed a Notice of Medical Documentation in Support of ADA Accommodation Request in the JP3 proceeding.

51. On January 5, 2026, Defendants filed a Motion to Strike Dr. Huang's physician correspondence in JP3 — the same day they filed an identical motion in the 141st District Court. (Ex. 19)

52. On January 13, 2026, Defendants filed a Motion for Transfer/Consolidation of the JP3 case with the 141st District Court litigation.

53. On January 14, 2026, judgment was entered for Defendants in the retaliation small-claims case.

54. On January 20, 2026, Plaintiff filed a Notice of Appeal for de novo review. Defendants immediately filed a Motion to Strike Pro Se Plaintiff's Notice of Appeal, invoking a January 21, 2025 Vexatious Litigant Order from the 231st District Court. Plaintiff contends that order is jurisdictionally defective on grounds of expired plenary power and mandatory transfer under Texas Family Code § 155.206(d). Plaintiff does not ask this Court to rule on its validity; the federal claim is the use of that order as an interference tool.

55. On February 4, 2026, Defendants contested Plaintiff's Statement of Inability to Pay for appeal.

56. On February 13, 2026, the JP3 court entered an Order Granting Defendants' Motion to Strike Plaintiff's Notice of Appeal. The order held that Plaintiff's Notice of Appeal "has no legal force or effect" and her right to de novo review in County Court at Law was extinguished. Plaintiff was experiencing an acute neurological medical event on February 13 and had notified opposing counsel; she had formally requested ADA accommodations. The hearing proceeded despite the medical emergency. (Ex. 21)

57. On March 19, 2026, the JP3 court denied Plaintiff's Motion to Vacate the order striking her Notice of Appeal.

(2) Justice Court, Precinct 3 — Plaintiff's Repair & Remedy Petition (JP03-25-RR00000029)

58. On November 3, 2025, Plaintiff filed a Repair & Remedy petition under Texas Property Code § 92.056.

59. Between November 10 and 18, 2025, Defendants' counsel at Wentz & Zavarelli initially told the court she was not attorney of record for the apartments, causing the case to be dismissed on November 18, 2025.

60. On November 20, 2025, Plaintiff filed a Motion to Reinstate. The court reinstated the case on November 21, 2025.

61. On December 8, 2025, Plaintiff filed an ADA accommodation request to appear by Zoom for the December 9 hearing. Defendants opposed the Zoom appearance.

62. On December 9, 2025, the hearing proceeded with asymmetric participation: Plaintiff appeared by Zoom, pro se, without counsel; Defendants appeared in person with counsel. Judgment of \$15,000 was entered against Plaintiff.

63. On December 11, 2025, Defendants filed a Motion to Strike Plaintiff's Notice of Appeal, invoking the same Vexatious Litigant Order.

64. On January 6, 2026, a second judgment of \$19,368.50 was entered against Plaintiff.

65. On January 7, 2026, Defendants filed a second Motion to Strike Plaintiff's Notice of Appeal.

66. On January 12, 2026, Plaintiff's Statement of Inability to Pay was granted and the Repair & Remedy case was forwarded to County Court at Law for de novo review.

(3) Justice Court, Precinct 5 — Defendants' Eviction Action (JP05-25-E00044950)

67. On December 12, 2025, Defendant WMCI Dallas X filed an eviction petition through Higier Allen & Lautin — a different law firm from Wentz & Zavarelli. The use of separate eviction counsel supports Plaintiff's direct notice to in-house General Counsel Benaicha: no single outside counsel possessed authority over all proceedings.

68. On January 9, 2026, Plaintiff filed her Answer and an ADA accommodation request.

69. On January 23, 2026, Defendants' eviction counsel sent notice regarding possession and threatened disposition of Plaintiff's personal property.

70. On January 30, 2026, judgment for Defendants was entered in the amount of \$14,573.23.

71. On February 18, 2026, a Writ of Possession was executed. Plaintiff's remaining personal property remains inside storage units under Defendants' control. (Ex. 22)

72. On February 26, 2026, Plaintiff filed a Statement of Inability to Pay; the eviction case was appealed to County Court at Law for de novo review.

(4) Justice Court, Precinct 5 — Plaintiff's Illegal Lockout Petition (JP05-26-SC00006700)

73. On January 15, 2026, the key to Unit 2145 ceased to function. Defendants provided no statutory notice as required by Texas Property Code § 92.0081(b).

74. On January 16, 2026, Plaintiff notified both Defendants' property management and Higier Allen of the lockout.

75. On or about February 4, 2026, Plaintiff filed a petition under Texas Property Code § 92.0081. Defendants have never provided a new key, have not returned Plaintiff's personal property, and have threatened disposal of all items.

(5) Defendants' Use of Vexatious Litigant Orders to Obstruct Protected Activity

76. On January 21, 2025, the 231st District Court (Tarrant County), in a family-law case, entered a Vexatious Litigant Order against Plaintiff. Plaintiff contends that order is jurisdictionally defective on two independent grounds: (a) the court's plenary power had expired no later than September 13, 2024; and (b) mandatory transfer under Texas Family Code § 155.206(d) divested the 231st of Plaintiff's Original Complaint and Application for Temporary Restraining Order and Preliminary Injunction

jurisdiction effective November 12, 2024. See *In re Florance*, 377 S.W.3d 837 (Tex. App.—Dallas 2012, no pet.). The validity of that order is being litigated in Texas courts. Plaintiff does not ask this Court to rule on its validity.

77. What is pleaded here is the use of that order, and a similar order from the 236th District Court (Dallas County) entered February 26, 2026, by Defendants in this matter — as a tool to extinguish Plaintiff's appellate rights. Knowingly invoking an order Plaintiff had contested as jurisdictionally defective, against a disabled federal civil-rights claimant for the purpose of extinguishing her access to de novo review, is the conduct that constitutes interference within the meaning of 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b).

(6) 141st District Court — Continuing Escalations and Coordinated Suppression

78. On December 29, 2025, Plaintiff filed her Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment (described above at paragraphs 42–44). The motion remains pending without merits resolution. (Ex. 18)

79. On January 5, 2026, Defendants filed a Motion to Strike Dr. Huang's physician correspondence in the 141st (identical to and coordinated with the JP3 motion filed the same day). (Ex. 19)

80. On January 8, 2026, Plaintiff sent written statutory notice to Benaicha and Brochstein citing 42 U.S.C. § 12203(b) and § 3617 by name. (Ex. 20) On January

12–13, 2026, Defendants filed multi-forum Responses and Objections to Plaintiff's Emergency Motion for Interim Housing and Replacement of Medical Equipment, and to her Request for ADA Accommodations — escalation, not correction. First Formal Corporate Ratification.

81. On April 8, 2026, Plaintiff sent a cease-and-desist letter to Wentz & Zavarelli and Sortor, copying Benaicha and Brochstein, regarding third-party contact with the American Bar Association to suppress Plaintiff's submission titled "Access Is Not Advantage" (ABA 2026). (Ex. 21A) On April 23, 2026, Defendants filed a Motion for Sanctions against Plaintiff. (Ex. 21B) Second Formal Corporate Ratification.

(7) 236th District Court (Tarrant County) — Defendants' Nonparty Amicus Filing in Copeland v. Decker

82. Plaintiff is the plaintiff in *Kathryn Copeland v. Kelly Decker, Individually and d/b/a Kelly Decker Law Firm and Formerly Decker Pool, Jointly and Severally*, Cause No. 236-363132-25, in the 236th Judicial District Court of Tarrant County (the "Decker action"). The Decker action is unrelated to Defendants' apartment-management business, unrelated to the 141st District Court litigation, and concerns Plaintiff's claims against an attorney who formerly served as amicus attorney for Plaintiff's minor children. Defendants are not parties to the Decker action and have no claim or interest in its outcome.

83. On May 6, 2026 at 11:09 a.m. CDT, Defendants filed in the Decker action an unsolicited "Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations Under the ADA." (Ex. 23) The brief was filed by Michelle S. Sortor of Wentz & Zavarelli, L.L.P., on behalf of "Weinstein Management Co., Inc. and WMCi Dallas X, LLC." Defendants did not seek leave of court and made no motion to intervene under Texas Rule of Civil Procedure 60. The transmittal letter from Sortor to the 141st District Clerk identifies the filing's purpose in writing as protection of Defendants' position in their own 141st District Court case. (Ex. 24)

84. On May 8, 2026 at 10:31 a.m. CDT, Plaintiff filed in the Decker action a Motion to Strike the Unauthorized Amicus Brief and Notice of Federal Interference with ADA Rights, expressly invoking 42 U.S.C. § 12203(b) and 28 C.F.R. § 35.134(b). (Ex. 25) Plaintiff's filing of the May 8 Motion to Strike is itself protected activity for purposes of 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b).

85. On May 8, 2026 at approximately 10:33 a.m. CDT, the court coordinator for the 233rd Judicial District Court (Tarrant County) advised counsel and the parties by email that Judge Kenneth Newell — sitting as Local Administrative Judge of Tarrant County and reviewing Plaintiff's vexatious-litigant permission question — directed all parties to submit all briefing for his consideration no later than 5:00 p.m. CDT on May 15, 2026. (Ex. 26) Defendants' May 6 amicus filing is among the materials Judge Newell will consider. Judge Kenneth Newell is also named

individually as a defendant in *Copeland v. Tarrant County, et al.*, No. 26-10389, currently pending in the United States Court of Appeals for the Fifth Circuit. (Ex. 27)

86. Defendants' May 6 amicus filing in the Decker action is unmoored from any recognized litigation interest of Defendants in that proceeding. Their stated purpose — protection of their position in their separate adversarial litigation against Plaintiff — is not a legitimate amicus purpose. See *Neonatology Assocs., P.A. v. Comm'r*, 293 F.3d 128, 131 (3d Cir. 2002) (Alito, J.). The filing is the textbook circumstance of "sham litigation" within the meaning of *Professional Real Estate Investors, Inc. v. Columbia Pictures Industries, Inc.*, 508 U.S. 49, 60–61 (1993). Third Formal Corporate Ratification.

G. Statutory Notice and Corporate Ratifications

87. On June 30, 2025, Lile Benaicha (General Counsel) received written notice of Plaintiff's federal civil-rights claims, including TDLR and HUD complaint numbers. As General Counsel, Benaicha had a duty to notify other officers of the corporation, including Co-President Allison Weinstein, of the federal civil-rights notice. Allison Weinstein had constructive notice from at least June 30, 2025.

88. On November 9, 2025, Plaintiff sent written notice to Benaicha and Brochstein expressly invoking federal civil-rights law.

89. On January 8, 2026, Plaintiff sent written statutory notice to Benaicha and Brochstein citing 42 U.S.C. § 12203(b) and § 3617 by name. (Ex. 20)

90. On May 10, 2026, Plaintiff served Allison Weinstein directly by name in a formal pre-suit federal civil-rights demand letter, with a 9:00 a.m. CDT, May 11, 2026 deadline. (Ex. 28) Defendant Allison Weinstein had actual personal written notice from May 10, 2026 onward. Allison Weinstein did not respond personally and did not direct any change in corporate course of conduct following receipt.

91. First Ratification (January 12–13, 2026): Defendants filed multi-forum responses and objections opposing — rather than meeting on the merits — Plaintiff's pending December 29, 2025 Emergency Motion.

92. Second Ratification (April 23, 2026): Motion for Sanctions filed against Plaintiff following her April 8, 2026 cease-and-desist regarding ABA suppression. (Exs. 21A, 21B)

93. Third Ratification (May 6, 2026): Nonparty amicus brief filed in *Copeland v. Decker*, 236th JDC Tarrant County. (Ex. 23)

94. Fourth Ratification (May 11, 2026): 144-page Combined Motion for Traditional and No-Evidence Summary Judgment filed in the 141st District Court on the same day Plaintiff's pre-suit federal demand deadline expired at 9:00 a.m. CDT. (Ex. 29)

95. Fifth Ratification (May 11–12, 2026): At 7:58 p.m. CDT on May 11, 2026, Plaintiff filed a Notice of Nonsuit Without Prejudice (Tyler eFile Envelope No. 114755572) under Texas Rule of Civil Procedure 162, effective on filing under *In re Bennett*, 960 S.W.2d 35, 38 (Tex. 1997) (orig. proceeding). (Ex. 30) The Tyler eFile system served Defendants' counsel of record within minutes. At 10:33 a.m. CDT on May 12, 2026, Defendants refiled the same Combined Motion for Summary Judgment against claims that no longer existed as a matter of law (Tyler eFile Envelope No. 114772665). (Ex. 33)

96. Each of the five ratifications post-dates the June 30, 2025 actual-notice baseline. Each was executed by corporate Defendants whose Co-President (Defendant Allison Weinstein, J.D., Washington University 1987), whose General Counsel (Defendant Lile Benaicha, J.D., Washington and Lee 2007), and whose insurer's Senior Claims Specialist (Defendant Amye Brochstein, Esq., J.D.) — three licensed attorneys — each had personal written notice of Plaintiff's federal civil-rights claims. Defendant Allison Weinstein personally signed Weinstein's internal ADA Site Compliance program. Weinstein's public corporate website declares a corporate Value of "EMBRACING A CULTURE OF INCLUSION AND OPENNESS" and links to a published Accessibility Policy. (Ex. 7A) Facts of that character plausibly support malice or reckless indifference under *Kolstad v. American Dental Ass'n*, 527 U.S. 526 (1999).

V. CLAIMS FOR RELIEF

Count I — Fair Housing Act: Failure to Accommodate, 42 U.S.C. § 3604(f)(3)(B)

97. Plaintiff re-alleges and incorporates all preceding paragraphs.

98. Plaintiff is a person with a handicap within the meaning of 42 U.S.C. § 3602(h).

99. Defendants Weinstein Management Co. and WMCI Dallas X are covered entities under the FHA as owners and operators of residential housing.

100. Plaintiff made repeated, documented requests for reasonable accommodation.

101. Each request was refused, delayed, or made subject to coercive conditions incompatible with Plaintiff's documented disabilities.

102. These accommodations were necessary to afford Plaintiff equal opportunity to use and enjoy her dwelling.

103. Defendants' refusals constitute a violation of 42 U.S.C. § 3604(f)(3)(B).

Count II — Fair Housing Act: Interference, 42 U.S.C. § 3617

104. Plaintiff re-alleges and incorporates all preceding paragraphs.

105. Section 3617 prohibits coercing, intimidating, threatening, or interfering with any person who has exercised or enjoyed rights under the FHA. See *Walker v. City of Lakewood*, 272 F.3d 1114 (9th Cir. 2001).

106. Defendants interfered with Plaintiff's exercise of FHA rights through the acts pleaded above.

107. Plaintiff's § 3617 claim is not based on isolated petitioning activity in state court. It is based on Defendants' broader course of non-privileged conduct, including: denial of disability-related housing accommodations; unilateral removal and continued detention of Plaintiff's medical equipment, medications, and personal property without lab testing or court authorization; termination of contractually committed temporary housing; failure to provide statutorily required notice under Texas Property Code § 92.0081(b); concealment from state courts of Defendants' own retained contractor's contamination report (independently implicating the duty of candor under Texas Disciplinary Rule of Professional Conduct 3.03); and failure to respond on the merits to a documented emergency motion supported by a treating physician's contemporaneous medical findings. Specific litigation conduct alleged in this Complaint falls outside any litigation privilege because it is the means by which the underlying non-privileged interference was effected. *Professional Real Estate Investors, Inc. v. Columbia Pictures Industries, Inc.*, 508 U.S. 49, 60–61 (1993); *White v. Lee*, 227 F.3d 1214 (9th Cir. 2000).

108. Each act was taken with actual written notice of Plaintiff's federal civil-rights claims.

109. Five formal post-statutory-notice corporate ratifications confirm ongoing willful conduct.

Count III — Americans with Disabilities Act: Interference, 42 U.S.C. § 12203(b)

110. Plaintiff re-alleges and incorporates all preceding paragraphs.

111. Section 12203(b) prohibits coercing, intimidating, threatening, or interfering with any individual in the exercise or enjoyment of rights protected by the ADA. The Fifth Circuit has recognized ADA interference as a distinct cause of action that reaches conduct intended to chill or impede ADA rights. See *Strife v. Aldine Indep. Sch. Dist.*, No. 24-20269 (5th Cir. May 16, 2025).

112. The right of meaningful access to courts is a fundamental right protected by Title II of the ADA. *Tennessee v. Lane*, 541 U.S. 509 (2004).

113. Defendants interfered with Plaintiff's ADA rights through the acts pleaded above.

Count IV — Punitive Damages, 42 U.S.C. § 3613(c); Kolstad v. American Dental Ass'n, 527 U.S. 526 (1999)

114. Punitive damages are available under 42 U.S.C. § 3613(c) upon a showing of malice or reckless indifference to federally protected rights.

115. The facts pleaded above plausibly support the Kolstad standard. Three of the six named Defendants — Defendant Allison Weinstein, Defendant Lile Benaicha, and Defendant Amye Brochstein — are each licensed attorneys with

personal written notice of Plaintiff's federal civil-rights claims and continued the alleged conduct after that notice. Weinstein's public website proclaims corporate Values of "INCLUSION AND OPENNESS" and publishes an Accessibility Policy and an Equal Housing Opportunity commitment, in direct juxtaposition to the conduct pleaded herein. (Ex. 7A)

Count V — Declaratory Judgment, 28 U.S.C. §§ 2201–2202

116. Plaintiff re-alleges and incorporates all preceding paragraphs.

117. An actual case or controversy exists between Plaintiff and Defendants concerning Defendants' continuing course of conduct. Plaintiff seeks a declaration under 28 U.S.C. §§ 2201–2202 that Defendants' conduct — specifically the coordinated suppression of physician evidence, the unauthorized nonparty amicus filing in *Copeland v. Decker*, the use of Plaintiff's disability-related inability to comply with discovery as the affirmative basis for summary judgment, the refiling of dispositive motions against nonsuited claims, and the invocation of orders Plaintiff contends are jurisdictionally defective — constitutes interference within the meaning of 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b). The declaration sought operates against the parties and their conduct, not against any state-court proceeding or order.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in her favor and against Defendants, jointly and severally, and grant the following relief:

Injunctive Relief (Emergency, Party-Directed Only)

a. Temporary Restraining Order requiring Defendants to immediately cease and desist from filing any further unauthorized nonparty amicus briefs, third-party contacts with courts, or other non-party communications in any matter to which Plaintiff is a party, for the purpose of addressing Plaintiff's federal civil rights, pending preliminary injunction hearing or further order of this Court.

b. Temporary Restraining Order requiring Defendants to immediately fund and arrange ADA-accessible temporary housing for Plaintiff, pending preliminary injunction hearing or further order of this Court, through one of the following mechanisms: (i) direct funding of an ADA-accessible single-family residence in the Westlake or Southlake, Texas area in the monthly rental range of \$6,200–\$7,800; or (ii) controlled-mechanism disbursement of \$18,000 per month for ADA-accessible housing.

c. Order requiring Defendants either to immediately return Plaintiff's personal property held under their control or to pay \$20,000 directly to vendors or to a court-

administered trust for one-time replacement of Plaintiff's medically necessary equipment.

Declaratory and Permanent Relief

d. Declaratory judgment under 28 U.S.C. §§ 2201–2202 that Defendants' conduct constitutes interference within the meaning of 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b);

e. Permanent injunction requiring Defendants to implement a documented ADA/FHA accommodation process with designated compliance oversight;

f. Permanent injunction prohibiting Defendants from initiating or maintaining future contacts with third parties (including bar associations, courts in unrelated proceedings, and Plaintiff's medical providers) for the purpose of interfering with Plaintiff's exercise of FHA or ADA rights;

Damages

g. Actual damages for relocation costs, medical expenses, destroyed and detained personal property, loss of housing, and physical and emotional harm;

h. Compensatory damages including, without limitation, \$261 per day for the period October 27, 2025 through the date of judgment, based on the U.S. General Services Administration FY 2026 federal per diem rate applicable to Plaintiff's primary residence locations in Grapevine, Tarrant County, Texas (Lodging: \$181/day; Meals & Incidental Expenses: \$80/day) and similar rates for Plaintiff's

periods of displacement in Dallas County, Texas, with adjustments for additional household members and disability-related accommodation needs

i. Compensatory damages for ongoing homelessness — more than 197 days as of the date of filing — and for the medical deterioration documented by Plaintiff's treating physician. See *Villas at Parkside Partners v. City of Farmers Branch*, 577 F. Supp. 2d 858 (N.D. Tex. 2008);

j. Punitive damages under 42 U.S.C. § 3613(c);

Attorneys' Fees and Costs

k. Reasonable attorneys' fees under 42 U.S.C. § 3613(c)(2) and 42 U.S.C. § 12205;

l. Costs of court;

Reservation

m. Plaintiff's claims are not subject to mootness based on any future voluntary cessation by Defendants. *Friends of the Earth, Inc. v. Laidlaw Environmental Services (TOC), Inc.*, 528 U.S. 167 (2000). Plaintiff's status as a federally-determined-disabled individual is supported by objective documentation including the April 10, 2026 SSA total-disability determination. *Cleveland v. Policy Management Systems Corp.*, 526 U.S. 795 (1999).

n. Such other and further relief as the Court deems just and proper.

Respectfully Submitted,



KATHRYN COPELAND

Pro Se Plaintiff

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

Tel: (817) 789-8498

Katie@KatieCopeland.com

Dated: May 12, 2026

VERIFICATION

I, Kathryn Copeland, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that the foregoing is true and correct to the best of my knowledge, information, and belief.



KATHRYN COPELAND